

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

WALTER JONES,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, DETECTIVE RYAN
OLEARY, Tax No. 950965, DETECTIVE PATRICK
MARRON, Tax No. 949254, SERGEANT ERIC
SAMUELS, Tax No. 923106, SERGEANT JAMES
WEIBERT, Tax No. 945343, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 4, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE RYAN OLEARY, Tax No. 950965, Warrant Section, 300 Gold Street,
Brooklyn, NY 11201
DETECTIVE PATRICK MARRON, Tax No. 949254, Warrant Section, 300 Gold Street,
Brooklyn, NY 11201
SERGEANT ERIC SAMUELS, Tax No. 923106, Warrant Section, 300 Gold Street,
Brooklyn, NY 11201
SERGEANT JAMES WEIBERT, Tax No. 945343, Warrant Section, 300 Gold Street,
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
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WALTER JONES,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE RYAN
OLEARY, Tax No. 950965, DETECTIVE PATRICK
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SAMUELS, Tax No. 923106, SERGEANT JAMES
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JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, WALTER JONES, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 6, 2018, at approximately 1:00 p.m., plaintiff Walter Jones, while lawfully inside of a bodega located at 342 Ridgewood Avenue, Brooklyn, New York, was subject to an unlawful assault, battery, and use of excessive force by the defendant New York City police officers when they grabbed plaintiff, slammed him down, and repeatedly struck plaintiff in the face, causing plaintiff to suffer serious physical injuries, including but not limited to bruising on his head and face. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff WALTER JONES is a resident of the state of New York.

3. DETECTIVE RYAN OLEARY, Tax No. 950965, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE RYAN OLEARY, Tax No. 950965, is and was at all times relevant herein, assigned to the Warrant Section.

5. DETECTIVE RYAN OLEARY, Tax No. 950965, is being sued in his individual and official capacity.

6. DETECTIVE PATRICK MARRON, Tax No. 949254 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE PATRICK MARRON, Tax No. 949254, is and was at all times relevant herein, assigned to Warrant Section.

8. DETECTIVE PATRICK MARRON, Tax No. 949254, is being sued in his individual and official capacity.

9. SERGEANT ERIC SAMUELS, Tax No. 923106, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT ERIC SAMUELS, Tax No. 923106, is and was at all times relevant herein, assigned to the Warrant Section.

11. SERGEANT ERIC SAMUELS, Tax No. 923106, is being sued in his individual and official capacity.

12. SERGEANT JAMES WEIBERT, Tax No. 945343 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT JAMES WEIBERT, Tax No. 945343, is and was at all times relevant herein, assigned to Warrant Section.

14. SERGEANT JAMES WEIBERT, Tax No. 945343, is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and

employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 4, 2019.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On March 6, 2018, at approximately 1:00 p.m., plaintiff was lawfully present inside of a bodega located at 342 Ridgewood Avenue, Brooklyn, New York.

25. At no point in time did plaintiff commit any crime, nor would any reasonable police officer believe plaintiff committed any crime.

26. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

27. Suddenly, without provocation or legal justification, the defendant police officers approached plaintiff grabbed him, slammed him down and repeatedly punched plaintiff in the face and head.

28. As a result of the defendant police officers tackling plaintiff to the ground, plaintiff sustained serious physical injuries, including but not limited to, a knot on his head and bruising and contusions to his face.

29. The defendant police officers then unlawfully handcuffed plaintiff.

30. At no point in time did plaintiff resist arrest in any way.

31. Thereafter, the defendant police officers transported plaintiff to the 75th precinct.

32. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime.

33. Specifically, in order to cover up their unlawful assault and battery of plaintiff, the defendant police officers falsely stated to the Brooklyn District Attorney's Office that plaintiff resisted arrest.

34. The surveillance video that captured this incident clearly shows that plaintiff did not resist arrest and further shows that the defendant police officers falsified their paperwork regarding the incident and forwarded false statements to the District Attorney's Office regarding this incident.

35. Thereafter, on March 7, 2018, plaintiff was transported to Brooklyn Central Booking.

36. On March 7, 2018, after approximately 24 hours in custody, plaintiff was arraigned in Brooklyn Criminal Court and based upon the defendant police officers fabrications, plaintiff was unlawfully charged with Resisting Arrest.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable assault, battery, and use of excessive force against plaintiff.

38. The unlawful assault, battery, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The use of excessive force by defendants by, amongst other things, by grabbing plaintiff, slamming him down and repeatedly punching him in the face constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Negligent Infliction of Emotional Distress

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Walter Jones. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

44. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Negligence

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants owed a duty of care to plaintiff.

51. To the extent defendants claim that the injuries to plaintiff's persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally punching him in the face.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. All of the foregoing occurred without any fault or provocation by plaintiff.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Assault

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Battery

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein

73. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

74. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

75. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. In withholding/creating false evidence against plaintiff Walter Jones, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

77. As a result of the foregoing, plaintiff Walter Jones, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

89. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Walter Jones demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 4, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE RYAN OLEARY, Tax No. 950965, Warrant Section, 300 Gold Street,
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Brooklyn, NY 11201
SERGEANT JAMES WEIBERT, Tax No. 945343, Warrant Section, 300 Gold Street,
Brooklyn, NY 11201

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 4, 2019

/s/
STUART E. JACOBS